

IN THE CIRCUIT COURT OF Tate COUNTY, MISSISSIPPI
FOR THE 17th JUDICIAL DISTRICT

STATE OF MISSISSIPPI

vs.

CAUSE NUMBER CR 2015-26 JmT

COUNT(S) 1

Whitney Fair Mullen

**SENTENCING ORDER
POST RELEASE SUPERVISION
(REPORTING & NON-REPORTING)**

The Defendant, Whitney Fair Mullen, on this date, came before the Court for sentencing pursuant to a (jury verdict) (adjudication) (negotiated plea) open plea to guilty of the charge of Fondling of a Child in violation of Miss. Code Ann. § 97-5-23.

The Defendant was represented by Richard Lewis, who was present at all times with the Defendant.

The State of Mississippi was represented by Rhonda Amis,
(Assistant) District Attorney.

The Circuit Court, therefore, adjudicates the Defendant guilty of the charge of Fondling of a Child in violation of Miss. Code Ann. § 97-5-23.

IT IS THEREFORE ORDERED that for said offense, the Defendant is hereby sentenced to serve a term of Two (2) years incarceration in the Mississippi Department of Corrections.

IT IS FURTHER ORDERED that upon release from the term of incarceration set forth in the preceding paragraph, the said Defendant be and is hereby placed under a term of Five (5) years of post release supervision, pursuant to the provisions of Section 47-7-34, M.C.A.

The period of post release supervision shall be served as follows: One (1) years of reporting post release supervision, and Four (4) years of non-reporting post-release supervision. During the period of reporting post release supervision, the Defendant is hereby placed

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EDWARD L. (EDDIE) HADSKY
CIRCUIT CLERK
BY: 107-69102679

under the supervision of the Mississippi Department of Corrections until the Court in term time, or the Judge in vacation, shall alter, extend, terminate or direct the enforcement of said post release sentence based upon the following terms and conditions: The Defendant shall

1. Report within 24 hours of release from court or incarceration to his/her probation officer;
2. Commit no crimes;
3. Avoid injurious or vicious habits;
4. Avoid persons or places of disreputable or harmful character;
5. Report to the Department of Corrections as directed;
6. Permit the Field Supervisor to visit him at home, work, or elsewhere;
7. Work faithfully at suitable employment so far as possible;
8. Remain within the State of Mississippi unless authorized to leave on proper application therefore;
9. Support his/her dependents;
10. Waive extradition to the State of Mississippi from any state of the United States and also agree that he will not contest any effort by any state to return him to the State of Mississippi and does hereby consent to any such extradition;
11. Not own or carry, possess with him/her any weapons;
12. Pay to the Mississippi Department of Corrections such monthly reporting fees as authorized by the Laws of Mississippi; said fees to be paid monthly by certified check or money order.
13. Not have in his/her possession nor use alcoholic beverages, marijuana, narcotics, or other controlled substances of any kind and not go into, remain about or frequent places where they are dispensed or sold as a primary sale item or used unlawfully;
14. Submit to such breath, saliva, urine, or other chemical analysis as requested to detect the possible presence of narcotics, alcohol, or other prohibited substances.
15. Promptly and truthfully answer all inquiries directed to him/her by any probation or parole officer;

16. Attend and complete any special programs or counseling as directed by the Court or the supervising officer;

17. Pay the following to the Clerk of this Court:

a. Court Costs;

b. Fine in the amount of \$ 1,000⁰⁰;

c. Crime Victim Compensation Fund in the amount of \$ _____;

d. Crime Lab Fee in the amount of \$ _____; made payable to _____
_____;

e. Transportation Costs to _____ County Sheriff's Department in the amount of \$ _____;

f. Restitution in the amount of \$ 1,000⁰⁰; made payable to _____
Mississippi Children's Trust Fund _____;

Restitution in the amount of \$ _____; made payable to _____
_____;

g. All assessments are due and payable at the rate of \$ 100⁰⁰ per month beginning
_____ or as follows 60 days after release from

18. And further Remand Counts 2 + 3.

The Defendant shall have no contact with the Stovall family

Upon successful completion of the period of reporting post release supervision, the Defendant shall serve the balance of the post release supervision, on non-reporting post release supervision, and during this period, the Defendant shall comply with the following terms and conditions:

1. Defendant shall not unlawfully use any controlled substance.
2. Defendant shall not unlawfully possess any controlled substance.
3. Defendant shall not own, carry, or conceal a firearm.
4. Defendant shall not commit any crime.
5. Defendant shall waive extradition back to the State of Mississippi.

IT IS FURTHER ORDERED that if the Defendant fails to successfully abide by all the terms and conditions of this sentence then upon five (5) days notice to the Defendant by the District Attorney or

Probation Officer of a claimed violation the Court will conduct a hearing. If the claimed violation is proven, the Court will have authority to terminate the period of post release supervision and to incarcerate the Defendant. Procedures for termination and incarceration shall be conducted in the same manner as procedures for revocation of probation and imposition of a suspended sentence.

This sentence imposed shall run (consecutive) (concurrent) to any and all sentences previously imposed.

The Defendant shall be given credit for 4 days served in custody awaiting trial on this charge, as by law required.

SO ORDERED this the 10th day of December, 2015.


CIRCUIT COURT JUDGE

A certified copy of this order has been delivered to the Defendant, who has been instructed regarding same.

DEFENDANT

425-65-5125
SOCIAL SECURITY NUMBER

10/30/1980
DATE OF BIRTH

White
RACE

DEFENDANT'S ADDRESS

97 South Fork Drive
Senatobia, MS 38668

POST RELEASE SUPERVISOR
DEPARTMENT OF CORRECTIONS

PLACE OF BIRTH

Female
SEX

DEFENDANT'S TELEPHONE